

22STCV37994 22STCV37994

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C07%2F30%2F2026

Source SHA-256: b3b1b59b3f7c8d3876c26a8ef079f9f80b53c2b3582c2ae566f93542e886278e

Case Number: 22STCV37994 Hearing Date: July 30, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

DENISE CARTER,

Plaintiff,

vs.

DEFENSE INTERNATIONAL CORPORATION,

Defendant.

Case No.:

22STCV37994

Hearing Date:

July 30, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER

RE:

PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT

Plaintiff

Denise Carter ("Plaintiff") requests entry of default judgment against Defendant Defense International Corporation ("Defendant") in the amount of \$112,916.85, comprising \$89,555.20 in damages, \$368.36 in prejudgment interest, \$623.81 in costs, \$18,394.80 in penalties, and \$3,974.68 in attorney fees.

The

Court notes two defects.

First,

the CIV-100 form does not reflect the amounts requested in the Judgment and Plaintiff's counsel's declaration. The total amount requested appears to only be the penalty amount.

Plaintiff

seeks \$50,000 in emotional distress damages. However, the only evidence provided by Plaintiff regarding emotional distress is as follows: "I experienced significant emotional distress after Defendant fired me. My termination left me unable to pay my bills and rent. I was depressed, lost sleep, and was scared. I began to feel better when I got the job Scorpion Security Services, Inc. I request that the Court award \$50,000 in damages for past emotional distress." (Carter Decl., ¶ 19.) Although Plaintiff attests to Defendant's illegal and unreasonable employment practices, Plaintiff does not support this request with sufficiently detailed information regarding, e.g., medical support sought, medical evidence, declarations from friends and/or family discussing possible behavior changes, or how she was affected emotionally, physically, or mentally due to Defendant's actions. "Emotional distress damages may compensate a plaintiff for ... grief, anxiety, worry, mortification ... humiliation, [or] indignity, and a plaintiff may prove such experiences solely through [their] own testimony. (Shirvanyan v. Los Angeles Community College Dist. (2020) 59 Cal.App.5th 82, 104 [internal quotations omitted].) External evidence is not strictly required, but to obtain substantial damages in the amount of \$50,000 from Defendant, Plaintiff needs to properly demonstrate the extent of her emotional distress.

Accordingly, Plaintiff's
request for default judgment is DENIED without prejudice. The Court continues
the hearing on the default judgment to _____, 2026, at 10 a.m. in Dept.
508. Courtesy copies of the default judgment package must be delivered to Dept.
508 concurrently with filing.

DATED: July
30, 2026

Hon.
Teresa A. Beaudet

Judge,
Los Angeles Superior Court